

MASTER SUBSCRIPTION AGREEMENT

Nimbus Analytics, Inc. and Calderwood Logistics Group, Inc.

This Master Subscription Agreement (the "Agreement") is entered into as of January 15, 2025 (the "Effective Date") by and between Nimbus Analytics, Inc., a Delaware corporation with its principal place of business at 1400 Corvina Street, Suite 900, Wilmington, Delaware ("Nimbus"), and Calderwood Logistics Group, Inc., a Pennsylvania corporation ("Customer"). This Agreement governs all Order Forms executed by the parties that reference it.

1. Definitions

"Platform" means the Nimbus hosted freight analytics service, together with any modules, application programming interfaces and documentation made available by Nimbus.

"Order Form" means an ordering document executed by both parties that references this Agreement and specifies the subscriptions, professional services and fees agreed for a particular transaction.

"Subscription Term" means the period stated in an Order Form during which Customer is entitled to access the Platform.

2. Scope and Order Forms

Nimbus grants Customer a non-exclusive, non-transferable right to access and use the Platform during the Subscription Term, solely for Customer's internal business operations and subject to the usage limits stated in the applicable Order Form.

Each Order Form forms part of this Agreement. In the event of a conflict between this Agreement and an Order Form, the Order Form controls, but only as to the transaction it describes.

No Order Form is binding until executed by an authorised representative of both parties.

3. Fees and Payment

Customer shall pay the fees set out in each Order Form. Unless an Order Form states otherwise, subscription fees are invoiced annually in advance and all invoices are payable within thirty (30) days of the invoice date.

All fees are stated in United States Dollars and are exclusive of taxes. Fees are non-refundable except where this Agreement expressly provides otherwise.

Nimbus may suspend access to the Platform if an undisputed invoice remains unpaid more than fifteen (15) days after written notice of non-payment.

4. Term and Termination

This Agreement commences on the Effective Date and continues until the expiry or termination of the last Order Form executed under it.

Either party may terminate this Agreement or any Order Form for material breach if the breaching party fails to cure that breach within thirty (30) days of written notice describing it.

Customer has no right to terminate an Order Form for convenience. Termination of this Agreement does not relieve Customer of the obligation to pay fees accrued or committed under any Order Form as at the effective date of termination.

5. Warranties and Disclaimers

Nimbus warrants that the Platform will perform materially in accordance with its documentation. Customer's exclusive remedy for breach of this warranty is correction of the non-conformity or, where Nimbus cannot correct it within a reasonable period, termination of the affected Order Form and a refund of prepaid fees for the unused portion of the Subscription Term.

Except as expressly stated, the Platform is provided "as is" and Nimbus disclaims all other warranties to the extent permitted by law.

6. General

This Agreement is governed by the laws of the State of Delaware, without regard to its conflict of laws rules.

Neither party may assign this Agreement without the other party's prior written consent, except to a successor in connection with a merger or sale of substantially all of its assets.

This Agreement, together with all Order Forms, constitutes the entire agreement between the parties with respect to its subject matter.

IN WITNESS WHEREOF, the parties have executed this document by their duly authorised representatives.

For Nimbus Analytics, Inc.: _____ Name: D. Ashworth Title: VP Commercial

For Calderwood Logistics Group, Inc.: _____ Name: M. Reyes Title: Chief Financial Officer